

25SMCV00243 25SMCV00243

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TENTATIVE RULING

Defendant Regents of the University of California's Motion for Judgment on the Pleadings is GRANTED with thirty (30) days leave to amend.

Plaintiff Teresa Bell may amend her complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Defendant Regents of the University of California to give notice.

The FAC provides little in the way of facts. Plaintiff alleges that she was employed by Defendant (FAC ¶ 1); she has a medical history of several conditions, including allergic rhinitis, eczema, and mild intermittent asthma (FAC ¶ 4); she has experienced respiratory issues at her workplace, particularly due to construction-related irritants like dust and fumes that substantially interfered with her ability to work in so far that she was forced to take medical leave (FAC ¶ 5); medical records document her issues, and a doctor evaluated Plaintiff (FAC ¶¶ 6-8); the doctor recommended that Plaintiff was to be reassigned to areas without exposure to workplace irritants (FAC ¶ 9); and Defendant "ignored" this, despite the doctor's report concluding that Plaintiff's asthma is industrial in nature and was a substantial factor which aggravated her preexisting allergic conditions, and ultimately led to Plaintiff being denied accommodations, discriminated against by Defendant, subjected Plaintiff to retaliation for requesting said accommodations, and ultimately led to her termination (FAC ¶ 10). In each of the ten causes of action that follow, Plaintiff provides mere boilerplate recitations of the elements of each claim and conclusory statements that she suffered the alleged harm without any specific facts about what she did, what Defendant did, how accommodations were requested and denied, how Defendant terminated Plaintiff, the nature of Plaintiff's harm or damages, or any other specific fact that would inform each claim.

Plaintiff argues in her opposition that she is not required "to plead evidence." (Opp'n, p. 2., l. 2.) This may be true in some manner, but it is also true that Defendant, the Court, and the trier of fact must be able to make out the nature of the claim alleged against Defendant, which cannot occur here without specific facts that are not alleged in the FAC. By Plaintiff's standard, it is sufficient to allege an interference claim, for example, by alleging only that Defendant interfered with Plaintiff's rights without any facts as to how it interfered. (See, e.g., FAC ¶¶ 85, 102.) Plaintiff asserts she can provide more facts and can allege them if permitted to amend (Opp'n, pp. 14-15), and the Court again notes that these facts are not included within the FAC. The Court cannot engage in a meaningful analysis of the claims without specific facts to determine if they are valid. For that reason, Defendant Regents of the University of California's Motion for Judgment on the Pleadings is GRANTED with thirty (30) days leave to amend. Plaintiff Teresa Bell may amend her complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) Upon amendment, the Court will address the merits of each specific cause of action based on the facts alleged in that amended pleading.